

Tentative Rulings for August 19, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504410	GALARZA-TOLEDO VS FARMWORKER INSTITUTE OF EDUCATION AND LEADERSHIP DEVELOPMENT	MOTION TO MODIFY AND/OR QUASH SUBPOENAS FOR EMPLOYMENT RECORDS BY ADONIS GALARZA-TOLEDO

Tentative Ruling: Upon the filing of a motion, the court can order a subpoena be quashed or modified. (Code Civ. Proc., §§ 1985.3, 1985.6, 1987.1.) A motion to quash must be served on the witness and deposition officer at least five days before the date set for production. (*Id.* at §§ 1985.3(g), 1985.6(f).) Even so, the time limit is not jurisdictional as a court can grant a motion to quash even after the date set for production. (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313.) There is no meet and confer requirements for a motion to quash as specified under sections 1985.3, 1985.6 and 1987.1.

As stated by the California Supreme Court: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 (applying to third party privacy rights).)

Employment records are protected by the right of privacy. (*Board of Trustees of Leland Stanford Jr. Univ. v. Superior Court* (1981) 119 Cal.App.3d 516, 528-530 (disapproved on other grounds in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557).) Plaintiff is not challenging request no. 1 which requests his payroll and wage records. He is challenging his entire personnel record and separation documents. Defendant merely argues that Plaintiff has asserted emotional distress and the personnel records are needed, and he has waived any privacy. General pain and suffering does not place the mental condition at issue. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1016.) Defendant has failed to show the relevance of obtaining the entirety of Plaintiff’s personnel files, without any limitation.

As for sanctions, the court may, in its discretion, order the losing party to pay sanctions incurred on the motion if the motion was made or opposed in bad faith, or without substantial justification. (Code Civ. Proc. § 1987.2(a).) Here, sanctions are appropriate as Defendant failed to give justification for providing the entirety of the personnel files. Plaintiff’s request of \$5,100 (\$850 x 6 hours) is excessive.

Motion to Quash and/or Modify Defendant's Subpoenas GRANTED.

Request for Sanctions GRANTED.

Sanctions awarded in the amount of \$2,975 (\$850 x 3.5 hours) to be paid to Plaintiff's attorney within 30 days.

Trial Setting Conference confirmed for February 25, 2027.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507287	MANAVIE VS EXEL INC.	MOTION FOR PREFERENTIAL TRIAL SETTING BY ARLETA L. MANAVIE, MICHAEL A. MANAVIE

Tentative Ruling: C.C.P. § 372(a)(1) provides that a person who lacks legal capacity to make decisions shall appear either by a GAL appointed by the court in which the action is pending. On July 22, 2026, Plaintiffs obtained appointment of a GAL for Arleta on representations that she lacks the capacity to adequately understand these proceedings and protect her interests. Defendants argue the motion is procedurally improper since it is brought by Arleta, not by her GAL.

Defendants are correct that § 372(a)(1) uses mandatory language, the incapacitated party *shall* appear through her GAL. A motion caption reading Plaintiff Arleta L. Manavie's Notice of Motion rather than Michael A. Manavie, as Guardian ad Litem for Arleta L. Manavie, moves... is a form irregularity that the statute's text supports objecting to. But Defendants cite no authority which treats such a caption defect as jurisdictional or as grounds to deny relief on the merits when the GAL is on the record, counsel of record represents both plaintiffs, and the GAL supports the motion.

C.C.P. § 36(a) provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (C.C.P. § 36(a)(1)-(2).) Code of Civil Procedure section 36(c)(1) requires that a party filing a motion for preference support it with "a declaration of the moving party that all essential parties have been served with process or have appeared." Moreover, C.C.P. § 36(d) provides that the court may, in its discretion, grant a motion for preference "accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference."

Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; the court cannot balance conflicting interests. (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529.) Notably, the requisite showing under § 36(a) may be made through an attorney affidavit "based upon information and belief as to the medical diagnosis and prognosis." (C.C.P. § 36.5; see also *Fox, supra*, 21 Cal.App.5th at 534 [no doctor's declaration is required

under the standard of subdivision (a)].) Trial must be set within 120 days even if opposing parties have not completed discovery or pretrial preparations. (C.C.P. § 36(f); *Swaithe v. Sup. Ct.* (1989) 212 Cal.App.3d 1082, 1086.)

Threshold Procedural Requirement Under Section 36(c)(1):

Defendants again contend the motion must be denied because an essential party, Hillebrand Last Mile USA, Inc., the entity allegedly involved in the incident, has not been named, served, or appeared. As with the initial motion, Plaintiff demonstrates that Defendant Hillebrand Gori USA, LLC filed an answer to the complaint on April 8, 2026, through counsel David A. Shimkin of Cozen O'Connor [not opposing defense counsel], and that Defendant Hillebrand Gori USA, LLC has not asserted in its filed answer that the incorrect entity was named. Plaintiff further shows that all named defendants have appeared and filed answers: Defendant Penske Leasing and Rental Company and Defendant Efrain Williams Rivas Sanchez filed answers on March 27, 2026; Defendant Hillebrand Gori USA, LLC filed an answer on April 8, 2026; and Defendant Exel, Inc. filed an answer on April 16, 2026. Again, the record before the Court demonstrates that all named defendants have filed answers.

C.C.P. § 36(a) – Mandatory Preference:

Under section 36(a), the preference is mandatory if Plaintiff is over 70 years old, has a substantial interest in the action and health necessitating preference to prevent prejudice.

There is no dispute that Plaintiff is 85 years old. There is also no dispute that she is an injured party seeking damages which constitutes a substantial interest in the action as a whole.

Rather, the parties dispute whether Plaintiff's health necessitates preference. Unlike the prior motion's vague references, the renewed motion provides concrete functional limitations affecting Plaintiff's ability to participate in litigation, specifically that she has been diagnosed with dementia and continues to deal with increased difficulty and has suffered a decrease of her legal capacity, including but not limited to difficulty with following single-step instructions, managing her medications, managing her finances, difficulty remembering names/locations, and has begun to eat less and less throughout the day. (Liu Decl., ¶ 3.) On April 29, 2026, Plaintiff Arleta underwent a T5-T6 kyphoplasty spinal procedure and T8-T9 posterior thoracic laminectomy to address her ongoing back pain and thoracic myelopathy from stenosis. (*Id.* at 9.) Moreover, on July 22, 2026, this Court entered a GAL order finding that Plaintiff lacks capacity. (*Id.* at 10.) This is sufficient to show her health necessitates preference.

Defendant's arguments regarding prejudice due to counsel's impending maternity leave and the need to complete discovery are not pertinent to the instant motion. Where a party meets the standard, "preference must be granted. No weighing of interests is involved." (*Fox, supra*, 21 Cal.App.5th. at 535.)

Motion for Preferential and Early Trial Setting GRANTED.

Mandatory Settlement Conference set for October 9, 2026 at 3:00 p.m.

Jury Trial set for October 23, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509919	SEARGEANT VS AIRBNB, INC., A DELAWARE CORPORATION	MOTION TO COMPEL ARBITRATION BY AIRBNB, INC., A DELAWARE CORPORATION

Tentative Ruling: The court must grant the petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement, or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-219.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Id.*)

Forum & Delegation:

As a threshold matter, Airbnb argues this Court is not an authorized forum under the applicable Terms of Service that Annabel contractually agreed to. Airbnb also argues that the delegation clause applies such that the arbitrator should decide if the arbitration agreement is applicable. However, when a plaintiff challenges mutual assent, as is the case here, the Court must first determine whether there is an arbitration agreement. (See *Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 202-21 [issues of formation may not be delegated to an arbitrator].)

Federal Arbitration Act:

Defendant asserts the FAA applies. Plaintiff does not dispute this. The Agreement states, “This Arbitration Agreement evidences a transaction in interstate commerce and the Federal Arbitration Act governs all substantive and procedural interpretation and enforcement of this provision.” (Agreement, § 24.6.) As the Agreement provides for the FAA to govern, then it governs. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.App.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Company, Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535.)

Existence of arbitration agreement:

Under both federal and state statutes, the threshold question when presented with a petition to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Assocs.* (1996) 50 Cal.App.4th 676, 684; See 9 U.S.C. §2; Code Civ. Proc., § 1281.) A party moving to compel arbitration can meet its “initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) For this initial burden, “it is not necessary to follow the normal procedures of document authentication.” [Citation.]” (*Id.* at 1058.) As a preliminary matter the trial court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity. (*Id.*)

Here, Defendant satisfied its initial burden of establishing the existence of a valid arbitration agreement by attaching the Agreement to Anderson’s declaration as Exhibit F. (*Condee, supra*, 88 Cal.App.4th at 218-219.) This shifts the burden to Plaintiffs, who **must offer admissible evidence** creating a factual dispute as to the agreement’s existence. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 [opponent must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent], emphasis added.)

Plaintiffs argue lack of mutual assent. Plaintiffs point out Anderson’s declaration fails to provide any admissible evidence illustrating that either of the email addresses in Exhibits A, G, or I belong to Annabel or Decedent. However, Plaintiffs’ argument misstates Airbnb’s burden. “The [trial] court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity.” (*Espejo, supra*, 246 Cal.App.4th at 1058.) Moreover, Plaintiffs fail to present any evidence to create a factual dispute, i.e., no declaration by Plaintiffs. Thus, Plaintiffs fail to meet their burden of creating a factual dispute. (*Iyere, supra*, 87 Cal.App.5th at 755.)

Delegation Clause:

The general rule is that the courts decide disputes about arbitrability unless the parties agree to delegate the issue of enforceability of arbitrability to the arbitrator. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892.) To be effective, the language “must be clear and unmistakable” and that there is no “contract defense such as fraud, duress, or unconscionability.” (*Id.* at 892.) This is a heightened standard of proof. (*Id.*)

The delegation clause here states, “If there is a dispute about whether this Arbitration Agreement can be enforced or applies to our Dispute, you and Airbnb agree that the arbitrator will decide that issue.” (Agreement, § 24.4.)

The Agreement’s delegation clause contains clear and unmistakable language that the parties intended to cover all disputes related to the Agreement.

The plaintiff must specifically challenge the delegation clause. (*Najarro v. Superior Court* (2021) 70 Cal.App.5th 871, 889.) Plaintiffs do not challenge the delegation clause.

Plaintiffs' arguments that the Arbitration Agreement's provision does not encompass the incident giving rise to this lawsuit must accordingly be decided by the arbitrator.

Severance in the Alternative:

In the alternative, Plaintiffs request the court to sever this action as to Airbnb only and allow the remainder of the civil suit to proceed against the remaining defendants. In reply, Airbnb states it does not oppose Plaintiffs' alternative request that the arbitrable claims be severed and the claims against the other defendants proceed separate in Court. (Reply., pg. 8:28-9:1.) However, this severance request needs to be addressed in a separate motion.

Plaintiff's Evidentiary Objection #1 to Declaration of Greg Anderson SUSTAINED.

Plaintiff's Evidentiary Objections 2-4 to Declaration of Greg Anderson OVERRULED.

Plaintiff's Evidentiary Objections 1-2 to Supplemental Declaration of Greg Anderson SUSTAINED.

Defendant Airbnb, Inc's Motion to Compel Arbitration and Stay Proceedings GRANTED.

The entire case is stayed, a status hearing re arbitration is set for February 19, 2027.

Case Management Conference is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603344	ISAAC VS EISENHOWER MEDICAL CENTER	DEMURRER ON COMPLAINT OF BYRON KENT ISAAC BY EISENHOWER MEDICAL CENTER

Tentative Ruling: No tentative ruling.

The hearing on the demurrer is continued to October 15, 2026. The parties are ordered to ***meet and confer via in person, teleconference or phone*** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- 1) Defendant vacate the hearing on the demurrer, and file an Answer;

- 2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- 3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (C.C.P. § 430.41(a)(3), C.C.P. § 435.5(a)(3).)

The court will not accept further briefing. Failure to comply will result in sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2603344	ISAAC VS EISENHOWER MEDICAL CENTER	MOTION TO STRIKE COMPLAINT OF BYRON KENT ISAAC BY EISENHOWER MEDICAL CENTER

Tentative Ruling: No tentative ruling. Hearing is continued for proper meet and confer and referenced above.